IN THE INDUSTRIAL COURT OF MALAYSIA
PERAK BRANCH

CASE NO. 10/4-656/25

BETWEEN

KHOO LI LI

AND

ALPHA ASCENT DEVELOPMENT SDN. BHD.

AWARD NO. 1878 OF 2025

BEFORE	:	**Y.A TUAN ZULHELMY BIN HASAN – CHAIRMAN**
VENUE	:	Industrial Court of Malaysia, sitting at Ipoh, Perak
DATE OF REFERENCE	:	24/03/2025
DATE(S) OF MENTION	:	07/05/2025 & 09/07/2025
DATE OF HEARING	:	23/10/2025
REPRESENTATION	:	**Khoo Li Li** Claimant in person (Unrepresented) Company - Absent

Reference:

This is a reference made by the Director General of Industrial Relations Malaysia dated 24/03/2025 pursuant to **Section 20(3) of the Industrial Relations Act 1967** which was received and referred to the Industrial Court of Malaysia on 26/03/2025 arising out of the alleged unfair dismissal of **KHOO LI LI** (hereinafter referred to as *"the Claimant"*) by **ALPHA ASCENT DEVELOPMENT SDN. BHD.** (hereinafter referred to as *"the Company"*) on 08/11/2024.

AWARD

Factual Backgrounds:

[1] The Claimant was employed as Project Development Planner Manager by Akijaya Development Sdn. Bhd. vide Statement of Particulars of Employment dated 18/05/2015 with monthly salary of RM3,800.00 per month. Later, she was employed as Project Planner in Akijaya Development Sdn. Bhd. with a monthly salary of RM5,000.00 along with other benefits as stipulated in the Statement of Particulars of Employment dated 12/04/2022.

[2] Thereafter, vide letter dated 01/10/2023, the Claimant was transferred of her employment from Akijaya Development Sdn. Bhd. to Alpha Ascent Development Sdn. Bhd., the Company named herein effective 01/10/2023 and she was assured that terms and conditions of the earlier employment contract remains unchanged due to change of management of the Company, but the works remains the same. The transfer is part of the Company's strategic initiatives and they believe it will provide the Claimant with new opportunities for professional growth and development. The Company also appreciated her past dedication and hard work at Akijaya Development Sdn. Bhd. and looking forward of her to continue contribution at Alpha Ascent Development Sdn. Bhd.

[3] Subsequently, the Company vide letter dated 16/09/2024 gave notice to convert the Claimant to a *"contract staff"* with effective 15/08/2024 and being denied the statutory payment of EPF and SOCSO. The Claimant, being a permanent staff in the Company, refused the said offer to be demoted by the Company as *"contract*

worker". As a result of her refusal to accept the offer, the Company without any basis or valid reason issued a Letter of Contract Termination dated 28/10/2024 terminating her employment with two (2) weeks notice ended on 08/11/2024.

[4] The Claimant asserts that the Company failed and/or neglected to pay her salary and other benefits promptly. When confronted, the Company's Director, **Teong Paik Weng** replied angrily and used foul language towards the Claimant when he refused to see her and avoided the Claimant at the material time. However, she carried on with her work diligently thereafter. Out of sudden, the Company purposely and with bad faith issued the Letter of Contract Termination dated 28/10/2024 terminating her services with two (2) week notice.

[5] The Claimant vide her letter dated 28/10/2024 replied, explained and clarified in detail on all allegations levelled against her and denied any misconduct as alleged. The Company never responded to her reply and maintained their decision to terminate the Claimant's services with the Company instead.

[6] The Claimant alleged that she was unlawfully dismissed on 08/11/2024 through Dismissal Letter issued by the Company dated 28/10/2024 with her last drawn monthly salary of RM5,000.00 along with other benefits as stipulated in the Offer Letter dated 12/04/2022 and salary slips of January to July 2024.

The Claimant's Case:

[7] The Claimant contends that the termination was purposely made by the Company to demote her position in the Company and did not benefit her whereby

the earlier employment terms and conditions are still enforceable and therefore the notice period is disputed.

[8] The Claimant avers that the Company failed to issue any notice prior to the termination seeking any clarification from the Claimant whereby the same is denial of natural justice, neither did the Company hold any domestic inquiry.

[9] The Claimant categorically denies any breach of express and/or implied terms and conditions of her employment and puts the Company to strict proof of their allegation against her. The Company has purposely and with bad intention levelled charge against her for dismissing her.

[10] The Claimant submits that the Company demoted her position from a permanent staff to a contract worker without any acceptance and/or consent of her. The dismissal was calculative steps taken by the Company to dismiss the Claimant unjustly. As such, the dismissal was without just cause and excuse and/or breach of the principle of natural justice, equity and good conscience.

Cause Papers, Bundle of Documents, Witness Statement & Written Submission Referred:

[11] In the course of hearing of this case as it was conducted by *ex-parte* hearing in the absence of the Company's representatives, it was the Claimant herself **Khoo Li Li** (CLW-1) being called to testify in support of her own case. In the same hearing, this Court had referred to the following documents: -

(i) Statement of Case attached with exhibits and documents (CLB) dated 29/05/2025;

(ii) Witness Statement of **Khoo Li Li** (CLW-1) dated 23/10/2024 marked as CLWS-1; and

(iii) Written Submission of the Claimant dated 25/11/2025.

The Company in this case failed to file any relevant documents including Statement in Reply despite being reminded numerous times by the Court during the e-Mention and before the hearing date.

Role of Industrial Court:

[12] The role of the Industrial Court was lucidly explained by His Lordship *Raja Azlan Shah* CJ (Malaya) (as His Royal Highness then was) in ***Goon Kwee Phoy v. J & P Coats (M) Bhd.*** **[1981] CLJU 30; [1981] 1 LNS 30; [1981] 1 MLJ 129, at p. 136** as follows:

> *"Where representations are made and are referred to the Industrial Court for enquiry, it is the duty of the court to determine whether the termination or dismissal is with or without just cause or excuse. If the employer chooses to give a reason or excuse for the action taken by him, the duty of the Industrial Court will be to enquire whether that reason or excuse has or has not been made out. If it finds as a fact that it has not been proven, then the inevitable conclusion must be that the termination or dismissal was without just cause or excuse. The proper enquiry of the court is the reason advanced by the employer, and that court or the High Court cannot go into another reason not relied on by the employer, or find one for him."*

[13] The Federal Court in ***Wong Yuen Hock v. Syarikat Hong Leong Assurance Sdn. Bhd. & Another Appeal*** **[1995] 3 CLJ 344 at p. 352** succinctly stated the function of the Industrial Court in dealing with dismissal cases as follows:

> *"On the authorities, we were of the view that the main and only function of the Industrial Court in dealing with a reference under* ***s. 20 of the Act*** *(unless otherwise lawfully provided by the terms of the reference) is to determine whether the misconduct or irregularities complained of by the management as the grounds of dismissal were in fact committed by the workman, and if so, whether such grounds constitute just cause or excuse for the dismissal."*

[14] The said principle was reiterated in ***Milan Auto Sdn. Bhd. v. Wong Seh Yen*** **[1995] 4 CLJ 449** at pp. 454 and 455 by the Federal Court, where His Lordship *Mohamed Azmi* FCJ said:

> *"As pointed out by this court recently in* ***Hong Leong Assurance Sdn. Bhd. v. Wong Yuen Hock [1995] 3 CLJ 344; [1995] 2 MLJ 753****, the function in the Industrial Court in dismissal cases on a reference under s.20 is two-fold: first to determine whether the misconduct complained of by the employer has been established and secondly to determine whether the proven misconduct constitutes just cause or excuse for the dismissal of the employee."*

<u>Burden of Proof</u>:

[15] The standard of proof applicable to dismissal cases is the civil standard of proof on a balance of probabilities as decided by the Court of Appeal in ***Telekom Malaysia Kawasan Utara v. Krishnan Kutty Sanguni Nair & Anor*** **[2002] 3 CLJ 314.** It was held that:

"Thus, we can see that the preponderant view is that the Industrial Court, when hearing a claim of unjust dismissal, even where the ground is one of dishonest act, including "theft", is not required to be satisfied beyond reasonable doubt that the employee has "committed the offence", as in a criminal prosecution... In our view the passage quoted from Administrative Law by HWR Wade & C.F. Forsyth offers the clearest statement on the standard of proof required, that is the civil standard based on balance of probabilities, which is flexible, so that the degree of probability required is proportionate to the nature and gravity of the issue."

[16] In ***Ireka Construction Berhad v. Chantiravathan Subramaniam James*** **[1995] 2 ILR 11 ,** the Industrial Court had this to say with regards to the burden of proof placed on the company:

"It is basic principle of industrial jurisprudence that in a dismissal case the employer must produce convincing evidence that the workman committed that offence or offences the workman is alleged to have committed for which he has been dismissed. The burden of proof lies on the employer to prove that he has just cause and excuse for taking the decision to impose the disciplinary measure of dismissal upon the employee. The just cause must be, either a misconduct, negligence or poor performance based on the facts of the case..."

Standard of Proof:

[17] The standard of proof applicable to dismissal cases is the civil standard of proof on a balance of probabilities as decided by the Court of Appeal in ***Telekom Malaysia Kawasan Utara v. Krishnan Kutty Sanguni Nair & Anor*** **[2002] 3 CLJ 314** as follows:

"Thus, we can see that the preponderant view is that the Industrial Court, when hearing a claim of unjust dismissal, even where the ground is one of dishonest act, including "theft", is not required to be satisfied beyond reasonable doubt that the employee has "committed the offence", as in a criminal prosecution... In our view the passage quoted from Administrative Law by H.W.R. Wade & C.F. Forsyth offers the clearest statement on the standard of proof required, that is the civil standard based on balance of probabilities, which is flexible, so that the degree of probability required is proportionate to the nature and gravity of the issue."

Law on *Ex Parte* Hearing:

[18] In ***Lee Mei Wan v. Ultimate Media Group Pty Ltd.*** **[2017] ILRU 1668; [2017] 2 LNS 1668,** it was observed by the learned Chairman that:

"Ex Parte Hearing

[4] ***Sub-section 29(d) of Act 177*** *provides for an ex parte hearing without the presence of one of the parties to the dispute as follows:*

The court may, in any proceedings before it:

(a)

...

(d) hear and determine the matter before it notwithstanding the failure of any party to submit any written statement whether of case or reply to the court within such time as maybe prescribed by the President or in the absence of any party to the proceedings who has been served with a notice or summons to appear."

[19] *OP Malhotra*, ***"The Law of Industrial Disputes"*** Volume 1: 6th. Edition, at p. 1062 states:

> *"If, however, a party wilfully absents himself in such a way that the adjudication is likely to be impede, or wilfully tries to delay or avoid the proceedings, the tribunal may fix a pre-emptory hearing on a particular day. After reasonable notice of hearing has been given to the defaulting party, if he still neglects or refuses to attend, the tribunal may and ought to hear in his absence. Prompt discharge of business is of particular importance before a tribunal adjudicating an industrial dispute...."*

[20] Therefore, the Court was of the view that in the circumstances of this case, an *ex parte* hearing was warranted due to the Company's failure to attend Court although the Notice of Hearing and the earlier Notice of Mention had been served on it as stated above. Also see the case of: ***Zahari Ruslan v. Wajib Cemerlang Sdn. Bhd.*** **[2011] 2 LNS 0450.**

[21] On the other hand, this Court is also mindful of its duty to adjudicate the matter on merit, *albeit* the case proceeded *ex parte*. The Claimant must be subject to the burden to prove his/her case on the balance of probabilities. This is succinctly set out in the case of ***Wong Brothers' Building Construction v. Choo Chee Siam*** **[2005] 2 ILR 356** in which the Company was absent during the date of the hearing. The Court continued to hear the case on an *ex parte* basis, wherein the Court held, *inter alia*, as follows:

> "The Court is mindful of the role in *ex parte* hearing by referring to the case of ***Ike Video Distributors Sdn. Bhd. v. Chan Chee Bin*** **[2004] 2**

ILR 687 where the Learned Chairman quoted from the book *"The Law of Industrial Disputes"* by OP Malhotra Vol. 3rd. edition. At p. 716:

> *"A rule empowering the tribunal to proceed ex parte if a party is absent and sufficient cause is not shown for his absence, would not enable it either to do away with the inquiry or straight away pass on an Award without giving finding on the merits of the disputes. In other words, the absence of a party does not entail the consequence that an Award will straightaway be made against him."*

[22] In the case of ***Manimaran Karuvanan v. Tav Facility Solution (M) Sdn. Bhd*. [2020] MELRU 1374** the Company failed to turn up when the case was called for a hearing. The Industrial Court had proceeded with an *ex-parte* hearing on the merit of the case pursuant to **s. 29(d) of the IRA 1967.** It was held *inter alia* as follows:

> *"As such, both parties had been sufficiently informed of the hearing dates fixed for this case. However, the Company failed to turn up in Court on the Hearing date. Hence, the hearing was ordered to proceed Ex-Parte pursuant to* **s. 29(d) of the IRA 1967***".*

<u>Pre-Trial Chronological Events</u>:

[23] Upon receipt of the reference by the Director General, Industrial Relations Department dated 24/03/2025, pursuant to **Section 20(3) of IRA**, this Court has issued a notice of first mention (Form F(t)) dated 07/04/2025 to the Company's registered address as per DGIR reference by hand delivery, but it was not successfully served to the Company, and an Affidavit of Non-Service dated 17/04/2025 was issued. Thereafter, in order to obtain the Company's current

business address and registered address, this Court made an application for SSM's search which was received on 24/04/2025.

[24] Following that, this Court resend the Form F(t) notice dated 07/04/2025 to the latest Company's registered and business addresses according to the addresses listed in the SSM search. The said Form F(t) Notice dated 07/04/2025 was successfully served and delivered to the Company's latest registered address in Greentown, Ipoh, Perak and an Affidavit of Service dated 30/04/2025 was issued accordingly.

[25] So with that, the Assistant Registrar of this Court has fixed the first date for the Claimant and the Company's representative to attend in the e-Mention proceeding on 07/05/2025 but no representative of the Company was present.

[26] Due to the absence of the Company's representative without reasonable excuse, the Assistant Registrar of this Court has sent a notice of notification setting the second e-Mention date which is set on 27/05/2025 whereof the second notice has been served and delivered to all the Company's latest registered and business addresses accordingly. The second notice was only successfully served and delivered to the Company's latest registered address and an acknowledgement of receipt dated 29/05/2025 has been recorded despite the second notice of notification to the Company's other address unable to be served, and the Affidavit of Non-Service dated 10/06/2025 together with the A.R Registered Card has been returned to this Court on 17/06/2025.

[27] Following the instructions of the Assistant Registrar, the Claimant filed her Statement of Case on 29/05/2025, and the Court issued a notice of instruction directing the Company to file a Statement in Reply via Form J dated 03/06/2025.

[28] After the Company failed to appear in the e-Mention for the second time on 27/05/2025, the Assistant Registrar issued a Notice of Hearing (Form G) dated 10/07/2025 which was successfully served and delivered to the Company's latest registered address where an Affidavit of Service dated 24/07/2025 was also provided accordingly.

[29] Nevertheless, the Affidavit of Non-Service to others Company's latest addresses including the address as per the DGIR reference dated 24/07/2025 was issued after the A.R Registered Card for service to others Company's latest business address was returned with the note "BERTUKAR/BERPINDAH”.

[30] As a final action, this Court issued a notice of reminder dated 14/08/2025 to the Company's latest business and registered addresses, where upon it was only been served and delivered to the Company's latest registered address (according to SSM search) together with the acknowledgement of receipt dated 20/08/2025. Meanwhile, an Affidavit of Non-Service to others Company's latest business and registered addresses has been issued accordingly due to the return of the A.R. Registered Card with the same note, “BERTUKAR/BERPINDAH”.

[31] Based on the above pre-trial case management, the Company had been sufficiently informed of the hearing dates fixed for this case. There is no excuse for

the Company for failing to turn up in Court on the dates fixed for hearing. Hence, the hearing was ordered to proceed *Ex-Parte* on 23/10/2025 pursuant to **Section 29(d)** of the **IRA 1967.** In relation to this, the Court is guided by the case of ***Lee Mei Wan v. Ultimate Media Group Pte. Ltd.*** **[2017] ILRU 1668; [2017] 2 LNS 1668.**

[32] Thereafter, on 23/10/2025 the scheduled date for a full hearing was proceeded despite notice being issued to the Company but no representative of the Company was present and so this Honorable Court proceeded to hear the matter *ex-parte* pursuant to **Section 29(d) and (g) of the Industrial Relations Act 1967 [Act 177].**

Issues:

[33] Having put the factual matrix of the case in perspective, the duty of this Court in relation to unfair dismissal claims under **s. 20(3) of the Industrial Relations Act** such as the present case, is the need to ask itself the following issues:

i) Whether there is a dismissal, and if yes;

ii) Whether the dismissal was with just cause and excuse

Evaluation of Evidence & Findings:

[34] The dispute before this Court relates to the claim by the Claimant that she was dismissed from her employment without just cause or excuse by the Company. Due to the absence of the Company and its representative, the case proceeded by

an *ex-parte* hearing. **Section 29(d) of Act 177** provides for an *ex-parte* hearing without the presence of one of the parties to the dispute as follows:

> *"The Court may, in any proceedings before it:*
>
> *(a)...(d) hear and determine the matter before it notwithstanding the failure of any party to submit any written statement whether of case or reply to the Court within such time as maybe prescribed by the President or in the absence of any party to the proceedings who has been served with a notice or summons to appear".*

[35] An *ex-parte* hearing was necessary in light of the circumstances of the case, given the Claimant's readiness to proceed and the Company's absence from Court, despite having been duly served with the Notice of Hearing and the prior Notice of Mention, as previously indicated.

[36] In the present case, the sole witness is the Claimant herself. The only issue to be decided by this Court is the claim by the Claimant that she had been terminated from her employment without just cause or excuse by the Company on 08/11/2024 vide Dismissal Letter dated 28/10/2024. It is undisputed and unchallenged evidence that throughout the Claimant's employment in the Company, as she had carried out her functions and responsibilities to the best of her ability and capability for the Company, however, she was not treated as a permanent employee but her employment status was changed to *"contract staff"* without any consultation to obtain her consent and agreement and without taking into account her length of service which clearly violated the fundamental terms and conditions in the employment contract between the parties. This matter and evidence were never answered and challenged by the Company in this claim.

[37] The Claimant asserts that the termination of her service was a termination simpliciter as no reasons was advanced by the Company and no notice of termination was issued to her. The decision of the Company vide letter dated 16/09/2024 by converting the Claimant's status of employment from permanent staff to contract staff in the Company was a clear breach of fundamental terms and conditions of the Claimant's employment with the Company at the material time. In addition, it was carried out without obtaining prior consent from the Claimant culminating a clear violation and breach of the Claimant's terms and conditions of service, whereby the Company's unilateral action against the Claimant has never been challenged neither explained by the Company in the proceedings. Nonetheless, the Company did not proffer any reason for the termination of her employment.

[38] It must be said that by being absent from attending the hearing and producing witnesses to contradict the Claimant's evidence during trial, the Company must be taken to agreeing to the Claimant's contentions or that the Company had no interest to challenge the Claimant's testimony. It must be noted that above all, the Company did not file its Statement in Reply to answer the Claimant's Statement of Case.

[39] It is profound finding and abundantly clear that the Company has failed to produce witnesses to adduce evidence to contradict the only evidence available before this Court testified by the Claimant. As such, this Court is of the views that the Claimant has prescribed admissible evidence on the balance of probabilities in support of her case of unfair termination.

[40] This Court is of the considered views that the Claimant had sufficiently proved on the balance of the probabilities that her termination was without just cause or excuse. The Company has failed to comply with due process in taking the action of terminating the Claimant. In the absence of evidence that justify to the contrary, the Company had failed to produce evidence in rebuttal to the evidence led by the Claimant before this Court. Failure to be present in Court by Company's witness thereby enabling cross examination of the Claimant's evidence certainly of no assistance whatsoever to this Court. Given the circumstances, in the course of dispensing justice, this Court is compelled to accept the *ex-parte* evidence adduced by the Claimant. In the absence of any evidence to the contrary to rebut the submissions presented to this Court by the Claimant, this Court is compelled to accept the truth in the Claimant's complaints in the aforesaid that goes to the fundamental breaches in the Claimant's employment contract.

[41] Notwithstanding that, this Court is of the views that the Claimant had sufficiently proved on the balance of the probabilities that she had been summarily dismissed by the breaches of fundamental terms of the employment contract by the Company. The Company had clearly failed to remedy the said breaches. In any event, the Company had failed to produce any evidence in rebuttal to the evidence led by the Claimant before this Court. The absence of the Company for the hearing merely to confirm that there was no question to be put to the Claimant for cross examination was devoid of any assistance to this Court whatsoever.

[42] In the foregoing, this Court finds that the Claimant in fact was dismissed by the Company on 08/11/2024. Be that as it may, the Company had failed to

discharge the burden of proof that the Claimant was terminated with just cause or excuse with the issuance of the Dismissal Letter dated 28/10/2024 against the Claimant. The Company had failed to show that it had acted *bona fide* in terminating the Claimant's services.

[43] Based on totality of the evidence, the Court found that the dismissal of the Claimant was tainted with unfair labour practice and was not carried out with *bona fide*. Hence, the dismissal was made without just cause and excuse. It is therefore this Court's conclusion based on equity and good conscience that the Claimant had successfully made out her case of termination without just cause or excuse. The Company had failed to prove its case of a valid dismissal of the Claimant by failing to attend and adduce evidence on the hearing date. It must necessarily follow that the Claimant's case be hereby allowed.

Conclusion:

[44] As such, in the circumstances, this Court found that the Claimant's dismissal without just cause or excuse. On another note, this Court is mindful of its duty to adjudicate the matter on merit notwithstanding the case proceeded *ex-parte*. The Claimant must be subject to the burden to prove her case on the balance of probabilities as it was held in ***Wong Brothers' Building Construction v. Choo Chee Siam (supra).*** In this case, the burden to prove her case on the balance of probability has been discharged by the Claimant. The Claimant's claim is hereby allowed.

Remedies:

a) Compensation In Lieu of Reinstatement

[45] The Court shall now consider whether the Claimant is entitled for an order of reinstatement to her former position without any loss of seniority, wages or benefits. Based on the Court's assessment of the industrial climate between the parties, it is certainly not conducive to reinstating the Claimant as the relationship between the Company and the Claimant has been badly strained. Considering the factual matrix of this case where the relationship between the Claimant and the Company can only be seen as having deteriorated after the Claimant's dismissal from employment, it is this Court's view that reinstatement of the Claimant to former position in the Company is not a suitable remedy in the circumstances of this case. This Court views that it would be inappropriate in the aforesaid circumstances to so order as the relationship between the parties no longer harmony.

[46] In the circumstances, it is inappropriate to order the remedy of reinstatement. Instead, the Claimant will be awarded an appropriate remedy accordingly. This Court referred to the principle discussed by the Federal Court in the case of ***Dr. A Dutt v. Assunta Hospital*** **[1981] 1 MLRA 472; [1981] 1 MLJ 304** where the Court held that:

> *"The Industrial Court is authorized to award monetary compensation if it is of the view that reinstatement is not appropriate. We are of the opinion that upon a true interpretation, the Industrial Court may properly award compensation where the dismissal is without just cause or excuse, if, in its considered view, it does not think reinstatement should be ordered".*

[47] In such a case, monetary compensation in lieu of reinstatement would be appropriate and is hereby granted. Following **Practice Note No: 3 of 2019**, compensation in lieu of reinstatement must be computed based on one month's salary for each year of completed service.

[48] Based on the evidence, this Court finds that the Claimant was employed with the Company since 18/05/2015 until date of her dismissal on 08/11/2024 with her last drawn basic salary of RM5,000.00 based on her last payslip dated 07/08/2024. She had served with the Company approximately for 9 years and 5 months. This would make her years of completed service is for nine (9) years.: RM5,000.00 x 9 years of completed service = **RM45,000.00**

b) <u>Backwages</u>

[49] In respect of the quantum the Court is mindful of the view taken by *Tun Salleh Abas* FJ in the case of ***Hotel Jaya Puri Bhd. v. National Company of Hotel, Bar & Restaurant Workers & Anor*** **[1990] 1 MLJ 109:**

> *".. if there is a legal basis for paying the compensation, the amount of course is very much a matter of the discretion which the Industrial Court is fully empowered under **s. 30 of the IRA 1967** to fix."*

[50] In determining the quantum for backwages that is discretionary in nature, the Court may award not exceeding the maximum of 24 months based on the last drawn salary; regards shall have to the provision under **Section 30(6A)** of the **IRA 1967**

and **Clause 1** of the **Second Schedule** in **[Factors For Consideration In Making An Award in Relation To A Reference Under Sub Section 20(3)]** which provides:

> *"1. In the event backwages are to be given, such backwages shall not exceed twenty four months backwages from the date of dismissal based on the latest drawn salary of the person who has been dismissed without just cause or excuse"*

[51] From the date of her dismissal on 18/11/2024 until the end of hearing date on 23/10/2025, it was 11 months eligible period for backwages: - RM5,000.00 x 11 months = **RM55,000.00**

[52] There shall be no deduction if the workman has not been able to secure any employment since the date of her dismissal. No evidence has been submitted to show that the Claimant was gainfully employed after her dismissal. As there was no evidence of post dismissal earnings, it would improper to deduct the awarded backwages pursuant to Clause 3 of the Second Schedule of **Section 30(6A) Industrial Relation Act 1967.**

Total Relief : RM45,000.00 + RM55,000.00 = **RM100,000.00**

[53] As the Court's final order, the amount totalling **RM100,000.00 (Ringgit Malaysia: One Hundred Thousand Only)** as awarded above less statutory deduction (if any), shall be paid by the Company to the Claimant within thirty (30) days from the date of service of this Award to parties.

[54] At the risk of repetition, this Court had taken into account the evidence adduced *ex-parte* in its entirety, having borne in mind **Section 30(5) of the IRA 1967** by which virtue this Court shall act according to equity, good conscience and the substantial merit of the case without regard to technicalities and legal form.

HANDED DOWN AND DATED THIS 09th. DAY OF DISEMBER 2025
Signed
(ZULHELMY BIN HASAN)
CHAIRMAN
INDUSTRIAL COURT OF MALAYSIA
IPOH, PERAK